

Syed Qasim Husain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2010 · Writ - C No. 31450 of 2010 · **Writ dismissed; relegated to Supply Code 2005 for bill correction.**

HEADNOTE

Mandamus for a permanent factory connection, founded on a disputed electricity bill, is refused. Correction of the bill is to be sought under the U.P. Electricity Supply Code, 2005, not by writ.

FACTUAL SUMMARY

Syed Qasim Husain petitioned the Allahabad High Court for a mandamus directing the State of Uttar Pradesh and electricity authorities to give a permanent electric connection to his factory. He produced a bill dated 30 January 2010 (Annexure-1) and submitted that the bill was incorrect, having given notice of that grievance to the department on 19 November 2009. Counsel for the petitioner and Shri Abhinav Shukla for the respondents were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

bill-correction-alternate-remedy

HOLDING

Where the consumer disputes an electricity bill, the remedy is to take appropriate steps under the U.P. Electricity Supply Code, 2005; a writ seeking permanent connection on that grievance is dismissed so the petitioner may pursue those Code remedies. ¶ 1

FLAG No clause number stated; court referred generally to the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus for a permanent factory connection, founded on a disputed electricity bill, is refused. Correction of the bill is to be sought under the U.P. Electricity Supply Code, 2005, not by writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 30 JANUARY 2010 BILL AND ENTITLEMENT TO A PERMANENT FACTORY CONNECTION

Left to remedies under the U.P. Electricity Supply Code, 2005. ¶ 1